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MINUTES OF A CITY COUNCIL MEETING

August 12, 2025

1:30 PM

Mayor Keeley opened the City Council Closed Session at 1:33 p.m. in a public meeting via Zoom and in Council Chambers, for the purpose of announcing the agenda, and receiving public testimony.

Roll Call

Present: Councilmembers Trigueiro, Brunner, Newsome, Golder, O'Hara; Vice Mayor Kalantari-Johnson; Mayor Keeley.

Absent: None.

Staff: City Manager M. Huffaker, Assistant City Manager M. Templeton, City Attorney T. Condotti, Deputy City Clerk Administrator J. Wood, City Clerk Administrator B. Bush.

Statements of Disqualification - Councilmember Brunner announced she will be recusing herself from item 2 as it relates to her employer.

Public Comment

Mayor Keeley opened the public comment period at 1:34 p.m. There were no speakers. Mayor Keeley closed the public comment period at 1:34 p.m., at which time the meeting was closed to the public and Council adjourned to the Courtyard Conference Room.

Closed Session

1. Conference With Legal Counsel - Liability Claims (Government Code §54956.95)

1) Claimant: Braden Coolidge
2) Claimant: Frank Iadiano
3) Claimant: William Scott Buerger
4) Claimant: Alexander R. Reyes

Claims against the City of Santa Cruz

Council received a status report, took up under agenda item 19, and no reportable action was taken.

2. Real Property Negotiations (Government Code §54956.8)

Property: 1016 Cedar Street
APN: 005-042-36
Owner: City of Santa Cruz
City Negotiator: Bonnie Lipscomb
Negotiating Parties: City of Santa Cruz and Joshua Bradley and Amanda Frazier (DBA Switch Bakery)
Under Negotiation: Price, terms of payment, or both

Council received a status report from the City Negotiator, took up under agenda item 16, and no reportable action was taken. Councilmember Brunner recused herself from this discussion.

3. Conference with Labor Negotiators (Government Code §54957.6)

SEIU Temporary Employees
SEIU Service Employees
Mid Managers, OE3
Fire Management
Fire, IAFF

City Negotiator - Sara De Leon

Council received a status report from the City Negotiator, and no reportable action was taken.

City of Santa Cruz
809 Center Street
Santa Cruz, California 95060

MINUTES OF A CITY COUNCIL MEETING
August 12, 2025

2:45 PM

Call to Order – Mayor Keeley called the meeting to order at 2:49 p.m. in Council Chambers.

Roll Call

Present: Councilmembers Trigueiro, Brunner, Newsome, Golder, O'Hara; Vice Mayor Kalantari-Johnson; Mayor Keeley.

Absent: None.

Staff: City Manager M. Huffaker, Assistant City Manager M. Templeton, City Attorney T. Condotti, Director of Public Works N. Nguyen, Chief of Fire R. Oatey, Deputy City Manager/Director of Economic Development and Housing B. Lipscomb, Director of Parks and Recreation T. Elliot, Chief of Police B. Escalante, Director of Planning and Community Development L. Butler (via Zoom), Director of Finance E. Cabell (via Zoom), Director of Information Technology K. Morgan (via Zoom), Transportation Manager M. Starkey, Deputy City Clerk Administrator J. Wood, City Clerk Administrator B. Bush.

Oral Communications Announcement - The Mayor provided a brief announcement about Oral Communications.

Oral Communications

At 2:50 p.m. Mayor Keeley opened Oral Communications for members of the public who wished to speak regarding items not listed on the City Council agenda.

Marv Lewis spoke regarding Lot 4, asking that construction not begin until the Tax Credit Allocation Committee provides written confirmation that the declared deadlines are in compliance.

Unidentified person spoke regarding the special meeting on August 4, 2025.

Oral Communications (continued)

Linda Marin spoke regarding the Make Polluters Pay Climate Superfund Act, SB 684 and AB 1243, and asked Council to agendize adoption of a resolution regarding these acts at the next meeting.

Unidentified person spoke regarding the Downtown Library groundbreaking next week, stating the event is private.

Susan Cavalieri spoke requesting Council to agendize an item addressing the California Make Polluters Pay Climate Superfund Act at the next meeting.

Ami spoke in opposition to using Flock ALPR cameras due to recent revelations that the data is shared with Immigration and Customs Enforcement, the Department of Homeland Security, and the Federal Bureau of Investigation, in violation of SB 34.

Pauline Seales spoke in support of Council adopting a resolution to support the Make Polluters Pay Superfund Act.

Natalie [last name unintelligible] spoke in support of Council adopting a resolution to support the Make Polluters Pay Superfund Act.

Unidentified person spoke regarding President Trump sweeping unhoused people out of the parks in Washington DC, and ALPR cameras and the implied right to privacy.

Unidentified person spoke regarding three books he was given, the Supreme Court Justice that was appointed, and Flock cameras.

At 3:09 p.m. Mayor Keeley closed Oral Communications.

Presentations

4. Mayoral Proclamation Declaring August 2025 as Breastfeeding Awareness Month

Councilmember Trigueiro read from and presented a proclamation declaring August 2025 as Breastfeeding Awareness Month. Dana Wagner, Director of the Community Bridges Women, Infants, and Children's Program, spoke.

5. Santa Cruz Small Business Development Center

Alex Pedersen, Director of Santa Cruz Small Business Development Center, gave a presentation. Leilani, owner of Botanic and Luxe, spoke.

Presiding Officer's Announcements – Mayor Keeley announced the following:

- The California Coastal Commission will be meeting in Calabasas on August 13th and will be addressing the Downtown Expansion Plan on their agenda. Mayor Keeley invited members of the public to participate in the meeting.
- The Harvey West Pool will be opening on Saturday, August 16th at 11:30 a.m.
- The Downtown Library groundbreaking is an open, public event and anyone is welcome to attend.

Statements of Disqualification – Councilmember Brunner announced she will be recusing herself from items 16 and 31 as they relate to her employment with the Downtown Association.

Additions and Deletions – None.

City Attorney Report on Closed Session – See page 8002 for the report.

Council Meeting Calendar

6. The City Council reviewed and did not revise the meeting calendar attached to the agenda.

Consent Agenda

Councilmember Trigueiro made a comment on items 12 and 22.

Councilmember Brunner made a comment on items 12 and 26, and pulled item 14 for further discussion.

Transportation Manager M. Starkey responded to Council questions regarding item 26.

Councilmember Newsome made a comment on items 16 and 20.

Vice Mayor Kalantari-Johnson pulled item 12 for further discussion and made a comment on items 20, 21, 25, and 27.

Councilmember O'Hara made a comment on items 12, 16, 20, and 21.

Councilmember Golder made a comment on item 20.

Mayor Keeley opened the public comment period. The following people spoke:

Unidentified person spoke regarding items 9, 13, 17, 24, and 26.

William Scott Buerger spoke regarding item 19.3.

Consent Agenda (continued)

Public comment (continued):

Unidentified person spoke regarding items 12, 13, 23, and 20.

Nick Tanza spoke regarding item 22.

Mayor Keeley closed the public comment period.

Vice Mayor Kalantari-Johnson made a comment on item 13.

MOTION: Vice Mayor Kalantari-Johnson moved, seconded by Councilmember O'Hara, to approve the remaining Consent Agenda.

ACTION: The motion carried with the following vote.

AYES:	Councilmembers Trigueiro, Brunner (with the exception of item 16), Newsome, Golder, O'Hara; Vice Mayor Kalantari-Johnson; Mayor Keeley.
NOES:	None.
ABSENT:	None.
DISQUALIFIED:	Councilmember Brunner (item 16).

7. Resolution Extending the Emergency Declaration in Connection with the December 2024 Municipal Wharf Emergency (CA/CM)

   LOCATION: District 4

   Resolution No. NS-30,532 was adopted extending by sixty days the Local Emergency Declaration in connection with the December 2024 Municipal Wharf emergency.

8. Resolution Extending the Emergency Declarations in Connection with the 2022/2023 Winter Storms and 2023/2024 Winter Storms (CA)

   LOCATION: Citywide

   Resolution No. NS-30,533 was adopted extending by sixty days the Local Emergency Declarations in connection with the 2022/2023 and 2023/2024 Winter Storms.

Consent Agenda (continued)

9. Minutes of the June 24, 2025 City Council Meeting (CC)

   LOCATION: None

   Motion carried to approve as submitted.

10. Minutes of the August 4, 2025 City Council Special Meeting (CC)

    LOCATION: None

Motion carried to approve as submitted.

11. Parks and Recreation Commission Appointment (CC)

LOCATION: Citywide

Motion carried to approve Councilmember Newsome's nomination of Melissa Begin to the Parks and Recreation Commission, with a term ending January 31, 2027.

12. Award Contract to Encompass Community Services for Downtown Outreach Worker (DOW) Program (CM)

LOCATION: District 4

Vice Mayor Kalantari-Johnson spoke.

Mayor Keeley opened the public comment period. The following person spoke.

Unidentified person

Mayor Keeley closed the public comment period.

MOTION: Vice Mayor Kalantari-Johnson moved, seconded by Councilmember Brunner, to award a contract to Encompass Community Services for the Downtown Outreach Worker (DOW) Program in the amount of $175,928.00 and to authorize the City Manager to execute an agreement in a form approved by the City Attorney with modifications to (1) explicitly state the program's dual purpose of serving individuals experiencing homelessness and supporting downtown employees, businesses, and patrons; (2) include clear outcome tracking and reporting requirements; and (3) direct staff to explore weekend and evening service expansion in future funding options. The Director of Homelessness Response and Community Programs is authorized to execute change orders within the approved budget.

Consent Agenda (continued)

12. Award Contract to Encompass Community Services for Downtown Outreach Worker (DOW) Program (CM) LOCATION: District 4 (CONTINUED)

ACTION: The motion carried unanimously with the following vote.

AYES:	Councilmembers Trigueiro, Brunner, Newsome, Golder, O'Hara; Vice Mayor Kalantari-Johnson; Mayor Keeley.
NOES:	None.
ABSENT:	None.
DISQUALIFIED:	None.

13. Endorsement of the Ocean Rise and Coastal Resilience Coalition (CM)

LOCATION: Districts 2, 3, 4, and 6

Motion carried to approve endorsement of the Ocean Rise & Coastal Resilience Coalition, as described in the attached Charter and supporting materials, and to authorize the Mayor, or designee, to execute the endorsement on behalf of the City of Santa Cruz.

14. Actions to Support Seabright and Harbor Businesses Impacted by the Murray Street Bridge Project (CN)

LOCATION: District 2, Citywide

Councilmember Brunner spoke.

Mayor Keeley opened the public comment period. The following people spoke.

Michael Spadafora
Unidentified person
Charles Meyer
Patrice Boyle
Enda Brennan
Steven Linoe
Unidentified person
Laurie Negro
James Ewing-Whitman

Mayor Keeley closed the public comment period.

Consent Agenda (continued)

14. Actions to Support Seabright and Harbor Businesses Impacted by the Murray Street Bridge Project (CN) LOCATION: District 2, Citywide (continued)

MOTION: Councilmember Brunner moved, seconded by Councilmember Golder, to take the following actions immediately:

- Work with the Santa Cruz County Regional Transportation Commission (RTC) to explore the feasibility of utilizing the Harbor Rail Bridge on a temporary basis for a pedestrian and cyclist pathway and ret[illegible] within the next two Council meetings for further direction;

- Explore free or reduced-cost parking in the Seabright area to support local businesses impacted by the construction;

- Design and install new signage in prominent locations announcing to the community and visitors that Seabright and Harbor businesses are open during construction;

- Implement a series of city-wide marketing efforts and promotional events that extend and expand on initial outreach and business support efforts in the area; and

- Approve the CEQA determination contained in this agenda report, including the application of categorical exemptions under CEQA Guidelines Section 15301 (existing facilities) and Section 15304 (minor alterations to land), which relate to the Council direction regarding signage installation.

- Direct staff to report back to Council by the meeting of September 9, 2025 with further options of support regarding the following items:

    - Santa Cruzer electric shuttle options
    - Santa Cruz METRO options
    - Financing options with city guarantees
    - Outdoor dining extension
    - Point person for weekly communications
    - Traffic control to allow two-way traffic on the one-way lane
    - Any extensions of time to allow a shorter timeline
    - Saturday construction work

Consent Agenda (continued)

14. Actions to Support Seabright and Harbor Businesses Impacted by the Murray Street Bridge Project (CN) LOCATION: District 2, Citywide (continued)

FRIENDLY AMENDMENT: Councilmember Golder requested to add direction to staff to work with the Harbor District to add water transportation.

Through discussion it was determined that there is a water taxi on select days/times scheduled through Labor Day, and staff has engaged with the Harbor District to extend the availability beyond Labor Day if there is a need and direction from Council.

Councilmember Brunner accepted the friendly amendment.

FRIENDLY AMENDMENT: Councilmember O'Hara requested to add direction for staff to return to Council within 90 days with a recommended formal policy establishing requirements and best practices for business notification, outreach, and support during planned or emergency street, utility, or infrastructure closures. The policy should address advance notice timelines, outreach methods, coordination of access, and potential mitigation measures to support affected businesses. Councilmembers Brunner and Golder accepted.

ACTION: The motion carried unanimously with the following vote.

AYES:	Councilmembers Trigueiro, Brunner, Newsome, Golder, O'Hara; Vice Mayor Kalantari-Johnson; Mayor Keeley.
NOES:	None.
ABSENT:	None.
DISQUALIFIED:	None.

Staff direction:
Work with business owners to determine their needs and how the City can assist.

Consent Agenda (continued)

15. Approval of Coastal Development Permit Deed Restrictions for 302, 326, and 328 Front Street for The Cruz Hotel Project (EDH)

    LOCATION: District 4

    Motion carried to:

- Authorize and direct the City Manager to execute and record deed restrictions for City-owned real property at 302, 326, and 328 Front Street (APNs 005-151-034, -35, and -48) as conditioned by the Coastal Development Permit requirements for The Cruz Hotel Project (A-3-STC-24-0016); and

- Approve the CEQA determination contained in this Agenda Report. The Council's action is exempt from CEQA under Section 15321 - Enforcement Actions by Regulatory Agencies.

16. Lease Agreement with Frazley Adventures, LLC dba Switch Bakery for City-owned Commercial Space at 1016 Cedar Street (EDH)

LOCATION: District 4

Motion carried to:

- Approve and authorize the City Manager to execute the Lease Agreement with Frazley Adventures, LLC, and any documents, amendments or extensions of a non-substantive nature, in a form approved by the City Attorney, for the commercial cafe space located at 1016 Cedar Street;

- Adopt Resolution No. NS-30,534 amending the Fiscal Year 2026 budget to budget revenue in the amount of $13,800 in the Parking Fund (Fund 741); and

- Approve the CEQA determination contained in this Agenda Report, including the application of the following exemptions in the event that this Council action is deemed a CEQA "project": 14 CCR 15301 (exemption for existing facilities) and 14 CCR 15061(b)(3) (common sense exemption).

Consent Agenda (continued)

17. Approve Purchase of Pierce Enforcer Pumper Fire Engine and Lease Agreement with PNC Equipment Finance (FD)

LOCATION: Citywide

Motion carried to:

- Award a contract for the purchase of a Pierce Enforcer Pumper Fire Engine (Apparatus) to Golden State Fire Apparatus in the amount of $1,081,832.19; and

- Adopt Resolution No. NS-30,535 approving a lease agreement between the City and PNC Equipment Finance to prepay for the purchase and to finance the Apparatus with a 4.18% interest rate over five (5) years for a total cost of $1,221,194.80; and authorizing the City Manager to execute the agreement and related documents in a form to be approved by the City Attorney.

18. Resolution Amending the FY26 Budget to Appropriate Funds into a Project for the UCSC Fire Station Remodel (FD)

Location: District 5

Motion carried to:

- Adopt Resolution No. NS-30,536 to amend the FY26 budget by appropriating $98,846.59 received from the University of California Santa Cruz (UCSC) into the Fire Department's facilities improvement project to support the remodel at the UCSC Fire Station; and

- Approve the CEQA determination contained in this agenda report, including the application of the following exemptions in the event that the proposed remodel project is deemed a CEQA "project": 14 CCR §15301 (Existing Facilities); 14 CCR §15302 (Replacement or Reconstruction); and 14 CCR §15061(b)(3)(Common Sense Exemption).

19. Liability Claims Filed Against the City of Santa Cruz (FN)

Motion carried to reject the liability claims of 1) Braden Coolidge, 2) Frank Iadiano, and 3) William Scott Buerger, and to return as late claim of 4) Alexander R. Reyes, based on staff recommendation.

Consent Agenda (continued)

20. Santa Cruz Wharf Ad Hoc Subcommittee Final Report and Recommendations (PR)

LOCATION: District 4

Motion carried to:

- Direct staff to complete the City's Extreme Weather Protocol, engage regional partners, and provide training to City staff on procedures; and develop a draft policy regarding Wharf business support following closures;

- Direct staff to develop a comprehensive accounting methodology for Wharf and beach area expenditures and revenues in line with State reporting requirements and City budgeting and strategic planning; and

- Direct staff to develop a Wharf business and operations plan that a) prioritizes operational efficiencies and cost reductions; b) enhances revenues; c) establishes clear strategies for investment in the Wharf structure and buildings; d) maintain market lease rates for businesses; and e) establishes clear roles and responsibilities for City staff related to Wharf operations and maintenance.

Consent Agenda (continued)

21. Santa Cruz Wharf Repairs and Recovery (PR)

LOCATION: District 4

Motion carried to:

- Adopt Resolution No. NS-30,537 approving the plans and specifications for the 2025 Santa Cruz Wharf End Interim Repair Project (c302612);

- Authorize staff to advertise for bids and award the contract for the 2025 Santa Cruz Wharf End Interim Repair Project. The City Manager is hereby authorized and directed to execute an agreement in a form approved by the City Attorney. The Director of Parks and Recreation is authorized to execute change orders within the approved project budget;

- Adopt Resolution No. NS-30,538 approving the plans and specifications for the 2025 Santa Cruz Wharf Bent 103-104 Repair Project (c302613) and authorizing the City, via an emergency procurement, to execute contracts without formal bids for construction. The resolution further: authorizes staff to award the contract to Power Engineering Construction Company, authorizes and directs the City Manager to execute an agreement in a form approved by the City Attorney, and authorizes the Director of Parks and Recreation to execute change orders within the approved budget;

- Adopt Resolution No. NS-30,539 amending the FY 2026 budget to appropriate $1,000,000 of funds into the 2025 Santa Cruz Wharf End Interim Repair Project (c302612);

- Adopt Resolution No. NS-30,540 amending the FY 2026 budget to appropriate $500,000 of funds into the 2025 Santa Cruz Wharf Bent 103-104 Repair Project (c302613); and

- Adopt the CEQA determination included in this agenda report finding both projects exempt under the following statutory and categorical exemptions: Public Resources Code Section 21080(b)(2) - emergency repairs to public service facilities necessary to maintain service; CEQA Guidelines Section 15301 (Existing Facilities); Section 15302 (Replacement or Reconstruction); and Section 15303 (New Construction or Conversion of Small Structures).

Consent Agenda (continued)

22. Placement of a Memorial Marker in Honor of Umpire Jay Luich at DeLaveaga Park (PR)

    LOCATION: District 1

    Motion carried to approve the installation of a memorial marker to be located at lower DeLaveaga Park in honor of Jay Luich, a longtime recreation sports referee and umpire.

23. Dissolution of Sister City Status with Puerto La Cruz, Venezuela (PR)

    LOCATION: Citywide

Resolution No. NS-30,541 was adopted to 1) officially dissolve the formal sister city relationship between Puerto La Cruz, Venezuela and Santa Cruz, California; 2) rescind Resolution No. NS-8246 that authorized the original relationship; and 3) designate the relationship with Puerto La Cruz as "Emeritus."

24. Purchase of Three Refuse Trucks (PW)

LOCATION: Citywide

Motion carried to authorize the purchase of one CNG Side loader vehicle and one Roll-off vehicle from TEC of California (Oakland, CA) in the amount of $885,000.00, and purchase one Split Rear Loader vehicle from Dobbs Peterbilt (Sacramento, CA) in the amount of $625,000.00.

25. Bethany Culvert Storm Damage Repair - Notice of Completion (c402407) (PW)

LOCATION: Districts 3 and 6

Motion carried to accept the work of Granite Construction (Watsonville, CA) as completed and authorize the filing of the Notice of Completion for the Bethany Culvert Storm Damage Repair (c402407), authorize the Public Works Director to sign the Notice of Completion as the Owner's Authorized Agent.

Consent Agenda (continued)

26. Traffic Calming Pilot Program (c402404): Award Contract (PW)

LOCATION: Districts 1, 2, and 6

Motion carried to:

- Award a contract to WGJ Enterprises, Inc. (Azusa, CA) in the amount of $176,646.80 for the Traffic Calming Pilot Program project. The City Manager is hereby authorized and directed to execute an agreement in a form approved by the City Attorney. The Public Works Director is authorized to execute change orders within the approved project budget; and

- Acknowledge the project is exempt from CEQA under Section 15301(c), Existing Facilities.

27. 800 West Cliff Drive Temporary Erosion Control and Path Reopening (c402515) - Notice of Completion (PW)

LOCATION: Districts 3 and 6

Motion carried to:

- Ratify contract for emergency response and stabilization measures in the amount of $107,678 with Granite Construction (Watsonville, CA); and

- Accept the work of Granite Construction as comp[illegible]d and authorize the filing of the Notice of Completion for the 800 We[illegible]cliff Drive Temporary Erosion Control and Path Reopening (c402515) and authorize the Public Works Director to sign the Notice of Completion as the Owner's Authorized Agent.

28. Award Contract for Wastewater Treatment Facility Biosolids End-Use Services (PW)

LOCATION: Citywide

Motion carried to award a three-year contract for Wastewater Treatment Facility biosolids end-use services from Synagro WWT Inc. (Baltimore, MD) in the amount of $895,000 for the first year of the agreement, reject all other proposals and authorize the City Manager to execute an agreement in a form approved by the City Attorney. The Director of Public Works is authorized to execute contract amendments within the approved budget.

Consent Agenda (continued)

29. Ratify Purchase Orders with Core & Main LP, Ferguson Enterprises LLC, Iconix Waterworks, Underground Republic, and Pace Supply for Water Distribution Parts and Materials (WT)

LOCATION: None

Motion carried to ratify Fiscal Year 2026 purchase orders exceeding the formal bid limit for Core & Main LP (St Louis, MO), Ferguson Enterprises LLC (Newport News, VA), Underground Republic Waterworks (San Jose, CA), Iconix Waterworks Inc. (Snohomish, WA), and Pace Supply (Santa Clara, CA) for Water Distribution waterworks materials as needed, and authorize the Purchasing Manager to approve future purchase orders and change orders through Fiscal Year 2030.

End Consent Agenda

Public Hearing

30. Heritage Tree Mitigation/Replanting In Lieu Fee and Tree Bond Update (PR)

LOCATION: Citywide

This item was continued to a future meeting, with the date to be determined, and was not discussed.

Recess - The City Council recessed at 4:53 p.m. to the 5:00 p.m. session.

City Council

5:00 PM

Call to Order – Mayor Keeley called the meeting to order at 5:22 p.m. in Council Chambers.

Roll Call

Present: Councilmembers Trigueiro, Newsome, Golder, O'Hara; Vice Mayor Kalantari-Johnson; Mayor Keeley.

Absent: Councilmember Brunner (disqualified).

Staff: City Manager M. Huffaker, City Attorney T. Condotti, Director of Planning and Community Development L. Butler, Director of Public Works N. Nguyen, Senior Planner T. Maier, Principal Planner S. Haschert, Deputy City Clerk Administrator J. Wood, City Clerk Administrator B. Bush.

Public Hearing

31. 2020 N. Pacific Avenue, 113-115 Knight Street: (CP24-0124) (APNs 006-364-01, -02) – Appeal of the Decision of the Planning Commission to Approve the Nonresidential Demolition Authorization Permit, Design Permit, Density Bonus Request, Administrative Use Permit, Lot-Line Adjustment, and Heritage Tree Removal Permit to Allow Demolition of the Existing Structures and Construction of an Eight-Story, Approximately 169,791 Square-Foot Mixed-Use Project Including 178 Residential Units, Approximately 2,727 Square Feet of Commercial/ Residential Amenity Space, and 100 Parking Spaces on a Site Located in the CBD/FP-O (Central Business District/Floodplain Overlay) Zone District and Within the North Pacific Subarea of the Downtown Plan. (Owner: Clocktower Center LLC; Applicant: Workbench) (Environmental Review: Categorical Exemption) (PL) LOCATION: District 5

Senior Planner T. Maier gave a presentation.

Appellant Gillian Greensite gave a presentation.

Applicant Jamileh Cannon with Workbench gave a presentation.

Public Hearing (continued)

31. 2020 N. Pacific Avenue, 113-115 Knight Street: (CP24-0124) (APNs 006-364-01, -02) (PL) LOCATION: District 5 (continued)

Mayor Keeley opened the public comment period. The following people spoke.

Unidentified person
David Carlson
Becky Steinbruner
Unidentified person
David Vanberto Gillis
Elise
Unidentified person
Keith McHenry
Unidentified person
Annika
Garrett
Drew Lewis
Karen Madura
Unidentified person
Kathleen Lynch
Bruce Thomas
John Aird
Gavin Roth

Mayor Keeley closed the public comment period.

Appellant Gillian Greensite gave a rebuttal.

Director of Planning and Community Development L. Butler responded to Council questions.

Applicant Jamileh Canon with Workbench responded to Council questions.

Appellant Jamileh Canon with Workbench gave a presentation.

Mayor Keeley opened the public comment period. The following people spoke.

David Carlson
Unidentified person
Unidentified person
Unidentified person
Unidentified person

Mayor Keeley closed the public comment period.

Public Hearing (continued)

31. 2020 N. Pacific Avenue, 113-115 Knight Street: (CP24-0124) (APNs 006-364-01, -02) (PL) LOCATION: District 5 (continued)

City Attorney T. Condotti responded to Council questions.

MOTION: Councilmember O'Hara moved, seconded by Vice Mayor Kalantari-Johnson, to:

1) Adopt Resolution No. NS-30,542 to deny the appeal of Clay Toombs and Gillian Greensite and uphold the Planning Commission's acknowledgment of the environmental determination and approval of the Nonresidential Demolition Authorization Permit, Design Permit, Density Bonus Request, Administrative Use Permit, Lot-Line Adjustment, and Heritage Tree Removal Permit, based on the Findings with Conditions of Approval listed in the draft resolution attached as Exhibit "A" with the following modifications:

- Amend Condition #51 as permitted in accordance with the Design Variation process in Chapter 4, Section J.1 of the Downtown Plan.

  From:

  No Encroachment of Balconies in Excess of 3 Feet Beyond Perimeter Lot Lines. Plans submitted for Building Permit issuance may not include any portion of the mixed-use building, including, but not limited to, any balcony(ies), extending a distance in excess of three feet beyond the perimeter lot lines of the subject site, consistent with applicable provision(s) of the Downtown Plan, except as required for compliance with pertinent provisions of the City of Santa Cruz Municipal Code or as required by applicable law.

  To:

  Encroachment of Balconies into the Public Right of Way. Balconies may extend a maximum of 4.5 feet beyond the property lines of the subject site on the Pacific Avenue and Bulkhead Street elevations and a maximum of 3 feet on the Knight Street elevation, pursuant to Downtown Plan Chapter 4, Section J.1 (Design Variations).

- Remove Condition #52 in order to acknowledge the changes in #51:

- Direct staff to make associated changes to the resolution and findings to reflect the intent of the changes noted above.

Public Hearing (continued)

31. 2020 N. Pacific Avenue, 113-115 Knight Street: (CP24-0124) (APNs 006-364-01, -02) (PL) LOCATION: District 5 (continued)

MOTION (continued):

2) Taking into account the many recent changes to state law that limit cities' abilities to preserve heritage trees, particularly for multi-family housing projects, direct staff to consider Council and community feedback from this item and related items and return to the City Council within six months to review options for proposed revisions to the heritage tree removal requirements that promote the City's environmental values, including at a minimum an analysis of the creation of objective standards for heritage tree removals and clarification of the processes related to heritage tree removals.

3) Direct staff to explore the feasibility of relocation of Coastal Redwoods T7 and T8, in collaboration with Workbench, and report back to Council before the end of the calendar year, or before the issuance of the building permit, whichever is earlier, with the outcome of the feasibility analysis and any potential Council action.

ACTION: The motion carried with the following vote.

AYES:	Councilmembers Trigueiro, Golder, O'Hara; Vice Mayor Kalantari-Johnson; Mayor Keeley.
NOES:	Councilmember Newsome.
ABSENT:	None.
DISQUALIFIED:	Councilmember Brunner.

Adjournment – Councilmember Golder moved, seconded by Councilmember Trigueiro, to adjourn. By consensus City Council adjourned at 7:45 p.m.

RESPECTFULLY SUBMITTED: ss/Julia Wood, Deputy City Clerk Administrator,
ATTEST: ss/Bonnie Bush, City Clerk Administrator, APPROVED: ss/Fred Keeley, Mayor.

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